

CITY CONTRACT _____

FENCE INSTALLATION AND ACCESS LICENSE AGREEMENT

This Fence Installation, Access, and Maintenance Agreement (“Agreement”) is by and between the City of Cheyenne, a municipal corporation organized and existing under the laws of the State of Wyoming (“City”), whose address is 2101 O’Neil Avenue, Cheyenne, Wyoming 82001, and Richard Menkin (“Licensee”), whose address is Post Office Box 243, Cheyenne, Wyoming 82003. The City and the Licensee are collectively referred to as “Party” or “Parties.” This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS:

WHEREAS, the Licensee holds fee title to approximately 2.23 acres of land located in the City of Cheyenne, County of Laramie, State of Wyoming (the “Property”), more particularly described as:

Lot 8, Block 3, Campstool Addition, 3rd Filing, City of Cheyenne, Laramie County, Wyoming; and

WHEREAS, the Licensee desires to install chain link fencing and gates across adjacent City-owned property, more particularly described as:

Lot 6, Block 3, Campstool Addition, 3rd Filing, City of Cheyenne, Laramie County, Wyoming

WHEREAS, the City agrees to permit the Licensee to install and maintain such fencing and gates, and to perform mowing and related maintenance activities on the City Parcel, for the mutual benefit of the Parties.

NOW, THEREFORE, in consideration of the mutual covenants and promises set forth herein, the Parties agree as follows:

1. **Purpose.** The purpose of this Agreement is to set forth the rights and responsibilities of the Parties regarding the Licensee’s authority to access, install, and maintain fencing and gates, and conduct mowing and related maintenance activities on the City Parcel.

2. **Term.** This Agreement shall become effective upon the date of the last signature affixed hereto. Unless earlier terminated in accordance with the terms set forth herein, this Agreement shall remain in full force and effect in perpetuity.

3. **Responsibilities of City.** The City shall:

- a. Permit the Licensee to access, install, and maintain fencing, gates, and perform mowing on the City Parcel.

4. **Responsibilities of Licensee.** The Licensee shall:

- a. Install and maintain fencing and gates on the City Parcel in a manner acceptable to the City; and
- b. Mow the City Parcel no fewer than two (2) times per summer season, or more frequently as reasonably necessary to maintain a neat and safe condition.

5. **License to Use City Property.** The City grants Licensee a nonexclusive, revocable license to access, install, and maintain fencing and gates, and to perform mowing and related maintenance activities on the City Parcel. This license conveys no real property interest and may be revoked by the City upon thirty (30) days' written notice. Upon revocation, Licensee shall be afforded a reasonable period of time to remove any installed improvements at the Licensee's sole cost and expense.

6. **Binding Effect.** This Agreement shall be binding upon and inure to the benefit of the Parties hereto, their respective personal representatives, heirs, successors, grantees, and assigns. This Agreement shall run with the City-owned parcel identified above and be recorded in the official records of the Clerk of Laramie County, Wyoming.

7. **General Provisions.**

a. **Amendments.** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the Parties to this Agreement shall be incorporated by written instrument, executed and signed by all Parties to this Agreement.

b. **Termination.** Either Party may terminate this Agreement at any time by providing thirty (30) days' written notice to the other Party. Upon termination of this Agreement, the City shall record in the official records of the Clerk of Laramie County, Wyoming the written notice of termination to provide public notice that the license granted herein is no longer valid or in effect. The Licensee shall cooperate in executing any necessary documentation to facilitate such recording.

c. **Assignment.** No Party may assign or transfer the responsibilities or agreements made herein without the prior written consent of the non-assigning Party, which approval shall not be unreasonably withheld.

d. **Applicable Law.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this Agreement and the Parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.

e. Compliance with Laws. The Parties shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this Agreement.

f. Indemnification. Each Party to this Agreement assumes the risk of any liability arising from its own conduct. Each Party agrees that it will be responsible for any loss, claim, damages, or demands resulting from its negligence and the negligence of its employees and agents. Neither Party agrees to insure, defend, or indemnify the other.

g. Nondiscrimination. The Parties shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105, *et seq.*, the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy, or qualifying disability in connection with the performance under this Agreement.

h. Governmental Immunity. The City does not waive governmental immunity by entering into this Agreement and specifically retains all immunities and defenses available to it as a governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws. Designation of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity.

i. Third-Party Beneficiary Rights. The Parties do not intend to create in any other individual or entity, the status of third-party beneficiary and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the Parties to this Agreement and shall inure solely to the benefit of the Parties to this Agreement. The provisions of this Agreement are intended only to assist the Parties in determining and performing their obligations under this Agreement. The Parties to this Agreement intend and expressly agree that only parties signatory to this Agreement shall have any legal or equitable right to seek to enforce this Agreement, to seek any remedy arising out of a Party's performance or failure to perform any term or condition of this Agreement, or to bring an action for the breach of this Agreement.

j. Force Majeure. The performance of this Agreement by the Parties shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the Parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. This Agreement may be cancelled by

any Party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other Party.

k. Severability. If any provision of this Agreement is found to be invalid or unenforceable for any reason, the remaining provisions will continue to be valid and enforceable. If a court finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision will be deemed to be written, construed, and enforced as so limited.

l. Notice. All notices arising out of or from the provisions of this Agreement shall be in writing and given to the Party either by regular mail or delivery in person.

m. Entirety of Contract. This Agreement represents the entire and integrated agreement between the Parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

8. Signatures. In witness whereof, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

By: _____
Patrick Collins, Mayor

Date: _____

(SEAL)

Attest:

Kylie Soden, City Clerk

Licensee

Richard Menkin

Date: _____